

Tentative Rulings for Department 501

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Tentative Ruling

Re: **Stewart v. General Motors, LLC**
Superior Court Case No. 25CECG00868

Hearing Date: June 18, 2026 (Dept. 501)

Motion: by Defendant for Summary Judgment

**If oral argument is timely requested, it will be entertained on
Thursday, June 25, 2026, at 3:30 p.m. in Department 501.**

Tentative Ruling:

To elect to treat the motion for summary judgment as one for judgment on the pleadings, and to grant the motion for judgment on the pleadings in favor of defendant General Motors, LLC. Plaintiff is granted 10 days' leave to file the First Amended Complaint, which will run from service by the clerk of the minute order.

Explanation:

Defendant General Motors, LLC moves for summary judgment of the complaint filed by Celestino Stewart on the basis that plaintiff's complaint alleging a cause of action for Violation of the Magnuson-Moss Warranty Act fails as a matter of law.

The complaint alleges that on or about July 1, 2024 plaintiff acquired a 2024 GMC 2500 Denali manufactured and distributed by defendant General Motors, LLC and sold to plaintiff with express and implied warranties. (Complaint, ¶¶ 4-7.) The vehicle is alleged to have exhibited defects and the defendant failed to bring the vehicle into conformity with the applicable warranties. (Id., ¶¶ 9-11.) Defendant is alleged to have breached the warranties in violation of the Magnuson-Moss Warranty Act. (Id., ¶¶ 16-18.) Plaintiff has alleged only a violation of the Magnuson-Moss Warranty Act and has not pled a claim for breach of warranty under state law. A failure to state a warranty claim under state law necessarily constitutes a failure to state a claim under Magnuson-Moss. (*Daugherty v. American Honda Motor Co., Inc.* (2006) 144 Cal.App.4th 824, 833.) As a result of the failure to allege a cause of action for breach of warranty under state law, plaintiff has not stated a cause of action under Magnuson-Moss.

Although defendant has framed the motion as one for summary judgment, the argument is that the claim is not properly pled. As a result, the court intends to deny the defendant's motion for summary judgment as to the entire complaint and treat the motion as one for judgment on the pleadings.

A motion for summary judgment necessarily tests the sufficiency of the pleadings, and thus its legal effect is the same as a demurrer or a motion for judgment on the pleadings. (See *Yancey v. Superior Court* (1994) 28 Cal. App. 4th 558, 561-62; *American Airlines, Inc. v. County of San Mateo* (1996) 12 Cal.4th 1110, 1117.) Therefore, if the court concludes the complaint (or any claim or defense) is insufficient as a matter of law, it

When a motion for summary judgment or adjudication is used to test whether the complaint states a cause of action, the court must accept the allegations of the complaint as true, and does not consider facts alleged in opposing declarations. (*American Airlines, Inc. v. County of San Mateo* (1996) 12 Cal.4th 1110, 1118.) Since the ruling is made on the pleadings only, all evidentiary objections are moot.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: KCK on 06/17/26
(Judge's initials) (Date)